

25STCV29954 25STCV29954

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 25STCV29954 Hearing Date: August 28, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 28, 2026

Case Name: Jaime, et al. v. Jimenez, et al.

Case

No.: 25STCV29954

Matter: Demurrer

with Motion to Strike

Moving

Party: Defendants Adela

Jimenez, Dionicio Mascorro Jimenez, as Trustee of the Jimenez Family Trust, Adela

Jimenez, as Trustee of the Jimenez Family Trust, and Dionicio Mascorro Jimenez

Responding Party: Plaintiffs Karla Azucena Jaime and Dayron

Antonio Bravo Mejia

Tentative

Ruling: The hearing on Defendants

Adela Jimenez, Dionicio Mascorro Jimenez, as Trustee of the Jimenez Family

Trust, Adela Jimenez, as Trustee of the Jimenez Family Trust, and Dionicio

Mascorro Jimenez's demurrer and motion to strike is continued to September 30,

2026.

Plaintiffs

Karla Azucena Jaime and Dayron Antonio Bravo Mejia ("Plaintiffs") filed this action against Defendants, Adela Jimenez, Dionicio Mascorro Jimenez, as Trustee of The Jimenez Family Trust, Adela Jimenez, as Trustee of the Jimenez Family Trust, Dionicio Mascorro Jimenez (collectively "Defendants") and Does 1 through 50. The First Amended Complaint ("FAC") alleges eight causes of action for: (1) breach of implied warranty of habitability; (2) breach of statutory warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) negligence; (5) violation of Civil Code section 1942.4; (6) private nuisance; (7) violation of City of Baldwin Park Rent Stabilization Ordinance; and (8) violation of Unfair Competition Law per Business and Professions Code sections 17200 to 17209.

Defendants

demurrer to Plaintiffs' fourth, sixth, and eighth causes of action, and move to strike portions of the FAC. Plaintiffs oppose.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time

in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd. (a).)

Defendants

contend that Plaintiffs did not respond to their meet-and-confer request. (Hansen Decl., ¶ 3.) Defendants sent their email to Plaintiffs on Friday, June 19, 2026, at 1:33 p.m. and requested Plaintiffs to respond and be available to meet and confer before Wednesday, June 24, 2026. (Hansen Decl., ¶ 3, Ex. A.) Defendants’ request is insufficient to satisfy the meet and confer requirements of Code of Civil Procedure sections 430.41, subdivision (a), and 435.5, subdivision (a).

Thus, the

Court will continue the hearing on Defendants’ demurrer and motion to strike to allow the parties to meet and confer in good faith.

Conclusion

The hearing on Defendants Adela
Jimenez, Dionicio Mascorro Jimenez, as Trustee of

the

Jimenez Family Trust, Adela Jimenez, as Trustee of the Jimenez Family Trust, and
Dionicio

Mascorro

Jimenez's demurrer and motion to strike is continued to September 30, 2026.

Defendants

are ordered to meet and confer with Plaintiffs within 14 calendar days of this
hearing. Defendants are ordered to file a meet-and-confer declaration in
compliance with the respective code sections. (Code Civ. Proc. § 430.41, subd.
(a); Code Civ. Proc. §435.5, subd. (a).) Defendants' meet-and-confer
declaration is due on September 21, 2026.